

The Gorakhpur Development Authority (Form of Register of Applications for Permission) Regulations, 1983

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State of Uttar Pradesh - Act

The Gorakhpur Development Authority (Form of Register of Applications for Permission) Regulations, 1983

UTTAR PRADESH

India

The Gorakhpur Development Authority (Form of Register of Applications for Permission) Regulations, 1983

Rule

THE-GORAKHPUR-DEVELOPMENT-AUTHORITY-FORM-OF-REGISTER-OF-APPLICATIONS-FOR-PERMISSION-REGULATIONS-1983 of 1983

Published on 3 April 1984

Commenced on 3 April 1984

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The Gorakhpur Development Authority (Form of Register of Applications for Permission) Regulations, 1983

Published vide Notification No. 5615/37-2 - 158-D.A.-80, dated March 31, 1984, published in U.P. Gazette, (Extraordinary), dated 3rd April, 1984

In pursuance of the provisions under clause (e) of sub-section (2) of Section 56 read with sub-sections (6) and (7) of Section 15 of the Uttar Pradesh Urban Planning and Development Act, 1973 (President's Act

No. 11 of 1973

), as reenacted with modification by the Uttar Pradesh President's Acts (Reenactment with Modifications) Act, 1974

(U.P. Act No. 30 of 1974), the Gorakhpur Development Authority, after the previous approval of the State Government, makes the following regulations prescribing the form of register of application for permission and the particulars to be contained in such register:

1.

Short title and commencement.

(1)

These regulations may be called the Gorakhpur Development Authority (Form of Register of Applications for Permission) Regulations, 1983.

(2)

They shall be applicable to the Gorakhpur Development Area; and

(3)

They shall come into force with effect from the date of publication in the Gazette.

2.

Form of Register.

- The Development Authority shall maintain a Register of Applications for Permission in the form prescribed in regulation No. 3 of these regulations.

3.

Particulars to be contained in the Register.

- The aforesaid Register of Applications for Permission shall contain the following particulars :

I. Applicant:

A. Where the applicant is a person other than Government or local authority-

(1)

Name of the Applicant

(2)

Father's/Husband's name

(3)

Occupation

(4)

Present Address

(5)

Age

(6)

If the applicant is a Company or Partnership Firms-

(a)

its name;

(b)

registered office;

(c)

names of Directors/Partners;

(d)

other particulars, if any.

(7)

Whether the applicant is the owner of the land or the capacity in which he is applying for permission.

B. If the applicant is Government or a local authority, the necessary particulars of the applicant and name and designation of the officer who has moved the application.

II. Site Particulars:

(1)

Location of the site of development

(2)

Khasra/Municipal Number and other local denominations

(3)

Boundaries of the site

(4)

Area of the plot in square metres

(5)

Local Bodies falling within the Development Area or whose boundaries touch the development area

(6)

Special features of the site, (if any)

(i)

..... (nearest monument)

(ii)

..... (nearest temple/mosque)

(iii)

..... (nearest Government building)

(iv)

..... (nearest important building)

(v)

.....

III. Nature of Development:

(1)

Erection of a building-

(i)

material alteration or enlargement;

(ii)

conversion by structural alterations-

(a)

of a building not originally constructed for human habitation into a place for human habitation; or

(b)

into more than one place for human habitation, of a building originally constructed as one such place; or

(c)

of two or more places of human habitation, into a greater number of such places;

(iii)

such alteration of a building as affects its drainage or sanitary arrangements, or materially affects its security;

(iv)

the addition of any rooms, buildings, houses or other structures to any building; and

(v)

the construction, in a wall adjoining any street or land not belonging to the owner of the wall, of a door opening on to such street or land;

(2)

Engineering Operations-

(i)

formation or laying out means of access to a road; or

(ii)

the laying out of means of water supply, or

(iii)

any other engineering operations.

(3)

Mining Operations;

(4)

Development of any land;

(5)

Re-development of building or land;

(6)

Any other development operations.

IV. Vicinity of Land to Public Property or Road:

(1)

Whether the site for proposed development is within 60 metres of the property or road maintained by the Public Works Department, Irrigation or any other Government Department or belonging to Railway Administration or Military.

(2)

Whether the permission under the Uttar Pradesh Roadside Control Act is necessary and has been obtained?

V. Purpose for which the building will be used:

(1)

Residential-

(a)

Personal living;

(b)

Rental purpose;

(2)

Commercial;

(3)

Industrial;

(4)

Religious, Charitable and Educational;

(5)

Any other purpose; or

(6)

For official use of the Government or local authority.

VI. Details of Application:

(1)

Date of submission of Application;

(2)

Amount of fee paid; Rs.

(3)

Receipt number and date of the payment of fee;

(4)

Plans submitted in triplicate/quadruplicate; and

(5)

Statements containing general specifications, purpose of development, etc. whether furnished?

(6)

Name, Licence No., last date of validity of licence of the licence-holder of the Authority who has prepared and signed the place for development.

VII. Action on the Application:

(1)

Dates on which application sent for inquiry and report to-

(a)

Executive Engineer;

(b)

Assistant Engineer;

(c)

Junior Engineer;

(2)

Report and Recommendations;

(3)

Final decision of the Vice-Chairman granting or refusing the permission with date;

(4)

Communication of permission/rejection of permission-

(a)

Letter No.,

(b)

Date,

(c)

Short contents,

(5)

If any additional information required-the letter No., date and short contents of such communication;

(6)

Date of receipt of revised plans and statements;

(7)

Action taken on the revised plans and statements;

(8)

Final decision of the Vice-Chairman on the revised plan and statement with date; and

(9)

the decision of the Vice-Chairman communicated vide letter No., dated and the short contents.

VIII. Monthly/Quarterly checking of the Register and Countersigning of entries:

(1)

Officers authorised to check the Register - (Names and designation).

(2)

The month/quarter of checking.

(3)

Name and designation of the officer who checked the register.

(4)

Date of checking.

(5)

Observations of the checking officer.

(6)

Signature of the checking officer.

(7)

Observation of the Countersigning Officer.

(8)

Counter-signature with date.

IX. Remarks:

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Translation